

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Torero	Team: Squad #1	CCRB Case #: 202000350	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/12/2019 8:16 AM, Monday, 12/16/2019 8:07 AM	Location of Incident: Woodhaven Boulevard and 67th Road	Precinct: 112	18 Mo. SOL 6/12/2021	EO SOL 1/27/2022	
Date/Time CV Reported Wed, 01/15/2020 9:25 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/15/2020 9:25 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Peter Chinsky	17045	957458	112 PCT
2. POM Terrence Williams	14665	951445	112 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Peter Chinsky	Discourtesy: On December 12, 2019, Police Officer Peter Chinsky acted discourteously toward § 87(2)(b)	
B.POM Terrence Williams	Abuse: On December 16, 2019, Police Officer Terrence Williams stopped the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on January 15, 2020.

On December 12, 2019, Police Officers Peter Chinsky and Terrence Williams of the 112th Precinct pulled § 87(2)(b) over at 67th Road and Woodhaven Boulevard in Queens. PO Chinsky approached the passenger's side of § 87(2)(b)'s vehicle and asked for § 87(2)(b)'s driver's license. § 87(2)(b) § 87(2)(b) complied and PO Chinsky said that § 87(2)(b) had not been wearing a seatbelt. PO Chinsky went back to the police vehicle, then returned with § 87(2)(b)'s license and a summons. Without saying anything, PO Chinsky threw the license and summons for failure to wear a seatbelt through the open front passenger-side window of § 87(2)(b)'s van (**Allegation A: Discourtesy**, § 87(2)(g)).

On December 16, 2019, PO Williams pulled § 87(2)(b) over at the same intersection again for not wearing a seatbelt (**Allegation B: Abuse of Authority**, § 87(2)(g)). PO Williams told § 87(2)(b) that his jacket was the same color as his seatbelt and he would give § 87(2)(b) the benefit of the doubt. PO Williams did not issue him a summons.

The investigation obtained video of the stops recorded by § 87(2)(b) as well as body-worn camera footage from PO Chinsky and PO Williams (Board Review 01-05).

Findings and Recommendations

Allegation (A) Discourtesy: On December 12, 2019, Police Officer Peter Chinsky acted discourteously toward § 87(2)(b)

§ 87(2)(b) testified that on December 12, 2019, PO Chinsky and PO Williams stopped him at 67th Road and Woodhaven Boulevard in Queens. PO Chinsky took § 87(2)(b)'s driver's license and took it to his police vehicle. PO Chinsky returned to the front passenger's side of § 87(2)(b)'s van and, without saying anything, tossed a summons and § 87(2)(b)'s license through the open front passenger's window. PO Chinsky did not try and hand the summons and license to § 87(2)(b) before tossing them into the vehicle. The summons fell onto the front passenger's seat and § 87(2)(b) eventually found his driver's license in between the two front seats of his van (Board Review 06).

PO Chinsky's body-worn camera footage captured this incident. At 4:43 in the video player's timestamp, PO Chinsky extends his right hand into § 87(2)(b)'s car through the open passenger's side window, holding the summons and § 87(2)(b)'s driver's license. PO Chinsky tells § 87(2)(b) what the summons is for and how long § 87(2)(b) has to respond. § 87(2)(b) says something to PO Chinsky and holds several pieces of paper towards him. At 5:07, approximately 24 seconds after attempting to hand § 87(2)(b) his license and summons, PO Chinsky says, "Here, hold onto this real quick" and extends his right hand further toward § 87(2)(b) but § 87(2)(b) does not take his license nor the summons. At 5:20 in the video player's timestamp, PO Chinsky is still holding the summons and § 87(2)(b)'s license and says, "Just make sure you wear your seat belt for your safety, here you go sir," and § 87(2)(b) says, "No!" and continues to protest. From 5:23 to 5:25, PO Chinsky appears to lower the hand in which he is still holding the summons and § 87(2)(b)'s license down toward the front passenger's seat of § 87(2)(b)'s van. At 5:26, PO Chinsky's right hand is no longer visible. He says, "All right; Drive safe, okay?" and walks away from § 87(2)(b)'s van (Board Review 04).

PO Chinsky's body-worn camera footage § 87(2)(g)

§ 87(2)(b) PO Chinsky held the summons and license out to § 87(2)(b) and explained

what the ticket is for and what § 87(2)(b) needed to do. PO Chinsky held the summons and license for at least 40 seconds as § 87(2)(b) appeared to argue with him. § 87(2)(g)

Allegation (B) Abuse of Authority: On December 16, 2019, Police Officer Terrence Williams stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Williams pulled over § 87(2)(b) for the latter's alleged failure to wear a seatbelt while driving. § 87(2)(g)

§ 87(2)(b) testified that on December 16, 2019, he was wearing his seat belt when PO Williams pulled him over at 67th Road and Woodhaven Boulevard in Queens and told him he had not seen him wearing his seat belt. PO Williams said that the seat belt in the van was the same color as § 87(2)(b)'s jacket, and therefore he could have made a mistake. PO Williams told § 87(2)(b) that he would do him a favor and did not issue § 87(2)(b) a summons (Board Review 06).]

Video from § 87(2)(b)'s van from a camera affixed to the dashboard and facing the driver showed that he was wearing his seatbelt as he drove and was wearing it for approximately 25 seconds before being stopped, and that the seat belt and jacket were similar in color (Board Review 03).

PO Williams testified that he was in a parked police vehicle on 67th Road at the northeast corner of 67th Road and Woodhaven Boulevard in Queens. PO Williams observed § 87(2)(b) driving northbound on Woodhaven Boulevard for three to four seconds. There was a bus lane between PO Williams' vehicle and the lane in which § 87(2)(b) was driving, but there were no buses going by at the time. PO Williams observed § 87(2)(b) holding the steering wheel of his van and leaning forward with his chest nearly touching the steering wheel. PO Williams testified that he should have seen the strap of § 87(2)(b)'s seatbelt above § 87(2)(b)'s left shoulder, but he did not see any strap. PO Williams followed § 87(2)(b) and pulled him over for not wearing his seatbelt. He exited his vehicle and approached § 87(2)(b) to ask for his documents, at which point § 87(2)(b) accused PO Williams of harassment. PO Williams recognized § 87(2)(b) from the earlier stop, and § 87(2)(b) mentioned the stop. PO Williams told § 87(2)(b) that his jacket and seatbelt, which both appeared to be black, were the same color, and that he would give § 87(2)(b) the benefit of the doubt (Board Review 07).

New York State Vehicle and Traffic Law § 1229-c, subsection 3 states that no person shall operate a motor vehicle unless they are restrained by a safety belt (Board Review 08). People v. Jean-Pierre, 47 A.D.3d 445 (1st Dep't 2008) found that officers are justified in stopping a vehicle when they have a reasonable basis to believe the driver is committing a traffic violation, even if they are mistaken about relevant facts, and that a mistake of fact, not of law, may be used to justify a stop (Board Review 09).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Police Officer Peter Chinsky has been a member-of-service for five years and has been a subject in three CCRB complaints and three allegations, none of which were substantiated.

§ 87(2)(g)

- Police Officer Terrence Williams has been a member-of-service for eight years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate the complaint.
- On March 31, 2020, a FOIL request was sent to the New York City Officer of the Comptroller for any Notices of Claim filed by § 87(2)(b) regarding this incident. The response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator:	<u>Sebastian Torero</u>	<u>Inv. Sebastian Torero</u>	<u>4/10/2020</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>		<u>4.10.20</u>
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date